"has two components. One, that the SMA and FMA be interpreted in a Constitution-compliant manner to include same-sex marriages by reading gender-specific words such as 'male', 'female', 'widow' and 'widower' as 'person' or 'spouse'. And that the notice and objections regime under the SMA be declared unconstitutional."

Taking note of the petitions, including those pending before the different high courts, a bench led by the Chief Justice of India, D.Y. Chandrachud, first brought all the cases dealing with same-sex marriage to the Supreme Court, then constituted a five-judge constitutional bench that included Justices S.K. Kaul, S. Ravindra Bhat, P.S. Narasimha and Hima Kohli besides the CJI himself, and began hearing the issue from April 18 onwards. However, while hearing the arguments, the apex court made it clear it would not go into the personal and religious laws governing marriages and asked the lawyers involved to restrict their arguments to the SMA. The CJI also said the court was playing a "dialogic role" in order to build consensus and move towards an "equal future".

An Equal Marriage

That equal future is important for petitioners Chakraborty and Dang, not just to publicly declare their sexual orientation sans fear or shame—they are already married with the consent of their respective parents—but to earn recognition and dignity in their everyday lives. The law bestows and protects a host of rights, privileges and obligations on married heterosexual couples, be it automatic rights to inheritance, maintenance and tax benefits or for the adoption of children. Married couples also enjoy several employment privileges, both in the private and the government space.

Chakraborty and Dang, however, do not have these rights, which impacts almost every aspect of their lives. For instance, even though Dang owns a house in the city, Chakraborty cannot use his address as proof of residence for himself, a privilege readily accorded to heterosexual married couples, by which one spouse can use the address of the other as proof of residence. The same problem arises when Chakraborty and Dang want to make



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THE KEY ARGUMENTS

QUESTION OF GENDER

The Supreme Court saw a gripping debate over the concept of gender when senior lawyer Abhishek Manu Singhvi said that 'same-sex marriage' was a narrow term and if the court were to grant marriage equality to gay couples, it should be for consenting adults across the "bodily gender and sex spectrum". Solicitor General Tushar Mehta countered Singhvi, saying the "biological gender was the gender of a person". CJI D.Y. Chandrachud immediately intervened to say there was no "absolute concept of a man or an absolute concept of a woman". "It is not the question of what your genitals are. It is far more complex... So, even when the Special Marriage Act says man and woman, the very notion of a man and a woman is not an absolute based on genitals," the CJI added. Mehta also pointed out a practical difficulty in recognising same-sex marriages as there are many shades of gender within the LGBTQIA+ spectrum. "There are people who refuse to identify [as] any gender. How will the law recognise them—as man or woman? There is a category that says gender will depend on mood swings. What their gender would be in a given situation, nobody knows," Mehta added. This discourse invited sharp reactions on social media and a flurry of memes.